

587 U.S.

June 17, 2019

No. 18–9258. *SHAW v. UNITED STATES*. C. A. 6th Cir. Certiorari denied.

No. 18–9259. *EJIOFOR v. UNITED STATES*. C. A. 10th Cir. Certiorari denied. Reported below: 753 Fed. Appx. 611.

No. 18–9264. *MARSHALL v. UNITED STATES*. C. A. 11th Cir. Certiorari denied.

No. 18–9275. *TROIANO v. UNITED STATES*. C. A. 9th Cir. Certiorari denied. Reported below: 918 F. 3d 1082.

No. 18–9284. *ROGERS v. COMPASS AIRLINES, INC., ET AL.* Sup. Ct. Minn. Certiorari denied. Reported below: 920 N. W. 2d 835.

No. 18–9291. *GREEN v. UNITED STATES*. C. A. 11th Cir. Certiorari denied. Reported below: 754 Fed. Appx. 943.

No. 18–9292. *FREDRICKSON v. UNITED STATES* (two judgments). C. A. 7th Cir. Certiorari denied.

No. 18–9293. *COOPER v. FLORIDA*. Dist. Ct. App. Fla., 4th Dist. Certiorari denied. Reported below: 265 So. 3d 614.

No. 18–9300. *WATERS, AKA JONES v. UNITED STATES*. C. A. 4th Cir. Certiorari denied.

No. 18–9301. *LOMAX v. UNITED STATES*. C. A. 8th Cir. Certiorari denied. Reported below: 910 F. 3d 1068.

No. 18–9303. *LINCKS v. UNITED STATES*. C. A. 5th Cir. Certiorari denied.

No. 18–9304. *DE LEON v. UNITED STATES*. C. A. 5th Cir. Certiorari denied. Reported below: 915 F. 3d 386.

No. 18–9305. *CHAPMAN-SEXTON v. UNITED STATES*. C. A. 6th Cir. Certiorari denied. Reported below: 758 Fed. Appx. 437.

No. 18–9306. *SAYER v. UNITED STATES*. C. A. 1st Cir. Certiorari denied. Reported below: 916 F. 3d 32.

No. 18–9312. *WRIGHT v. UNITED STATES*. C. A. 4th Cir. Certiorari denied. Reported below: 746 Fed. Appx. 290.

No. 18–9313. *WATSON v. KILLOUGH ET AL.* C. A. 10th Cir. Certiorari denied. Reported below: 750 Fed. Appx. 773.

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No. 18–9315. *PEEBLES v. UNITED STATES*. C. A. 8th Cir. Certiorari denied. Reported below: 759 Fed. Appx. 559.

No. 18–543. *STATE CORRECTIONAL INSTITUTION AT FAYETTE ET AL. v. REEVES*. C. A. 3d Cir. Motion of respondent for leave to proceed *in forma pauperis* granted. Certiorari denied. Reported below: 897 F. 3d 154.

No. 18–918. *COPELAND ET AL. v. VANCE ET AL.* C. A. 2d Cir. Motions of Legal Aid Society, Criminal Law Professors et al., and Constitutional Law Scholars for leave to file briefs as *amici curiae* granted. Certiorari denied. Reported below: 893 F. 3d 101.

No. 18–1279. *LEWIS ET AL. v. PENSION BENEFIT GUARANTY CORPORATION*. C. A. D. C. Cir. Certiorari denied. JUSTICE KAVANAUGH took no part in the consideration or decision of this petition. Reported below: 912 F. 3d 605.

No. 18–8434. *HALVORSEN v. HART, WARDEN*. C. A. 6th Cir. Motion of petitioner to defer consideration of petition for writ of certiorari denied. Certiorari denied. JUSTICE KAGAN took no part in the consideration or decision of this motion and this petition. Reported below: 746 Fed. Appx. 489.

No. 18–8664. *LOWE v. FLORIDA*. Sup. Ct. Fla. Certiorari denied. Reported below: 259 So. 3d 23.

JUSTICE SOTOMAYOR, dissenting.

I dissent for the reasons set out in *Reynolds v. Florida*, 586 U. S. 1004, 1011 (2018) (SOTOMAYOR, J., dissenting from denial of certiorari).

Rehearing Denied

No. 18–1147. *BRUNSON v. HOGAN ET AL.*, 587 U. S. 986;

No. 18–1216. *LUSSY v. FLORIDA ELECTIONS COMMISSION ET AL.*, 587 U. S. 971;

No. 18–7966. *SMITH v. TERRIS, WARDEN*, 586 U. S. 1254;

No. 18–8022. *ARIAS COREAS v. CLARKE, DIRECTOR, VIRGINIA DEPARTMENT OF CORRECTIONS*, 587 U. S. 925;

No. 18–8175. *GUNCHICK v. BANK OF AMERICA, N. A.*, 587 U. S. 949;

No. 18–8244. *CORNELL v. VIRGINIA*, 587 U. S. 949; and

No. 18–8507. *JENNETTE v. COMMISSIONER OF INTERNAL REVENUE*, 587 U. S. 977. Petitions for rehearing denied.

REVISIONS TO RULES OF THE SUPREME COURT OF THE UNITED STATES

ADOPTED APRIL 18, 2019

EFFECTIVE JULY 1, 2019

The following are revisions to the Rules of the Supreme Court of the United States as adopted on April 18, 2019. See *post*, p. 1072. The revised Rules became effective July 1, 2019, as provided in Rule 48, *post*, p. 1076.

For previous revisions of the Rules of the Supreme Court see 346 U. S. 949, 388 U. S. 931, 398 U. S. 1013, 445 U. S. 985, 493 U. S. 1099, 515 U. S. 1197, 519 U. S. 1161, 525 U. S. 1191, 537 U. S. 1249, 544 U. S. 1073, 551 U. S. 1195, 558 U. S. 1161, 569 U. S. 1041, and 582 U. S. 969.

ORDER ADOPTING REVISED RULES
OF THE SUPREME COURT OF
THE UNITED STATES

THURSDAY, APRIL 18, 2019

IT IS ORDERED that the revised Rules of this Court, approved by the Court and lodged with the Clerk, shall be effective July 1, 2019, and that the amended provisions shall be printed as an appendix to the United States Reports.

IT IS FURTHER ORDERED that the Rules promulgated September 27, 2017, see 582 U. S. 969, shall be rescinded as of June 30, 2019, and that the revised Rules shall govern all proceedings in cases commenced after that date and, to the extent feasible and just, cases then pending.

REVISIONS TO RULES OF THE SUPREME COURT
OF THE UNITED STATES

ADOPTED APRIL 18, 2019—EFFECTIVE JULY 1, 2019*

Rule 14. Content of a Petition for a Writ of Certiorari

1. A petition for a writ of certiorari shall contain, in the order indicated:
 - (b) (i) A list of all parties to the proceeding in the court whose judgment is sought to be reviewed (unless the caption of the case contains the names of all the parties);
 - (ii) a corporate disclosure statement as required by Rule 29.6; and
 - (iii) a list of all proceedings in state and federal trial and appellate courts, including proceedings in this Court, that are directly related to the case in this Court. For each such proceeding, the list should include the court in question, the docket number and case caption for the proceeding, and the date of entry of the judgment. For the purposes of this rule, a proceeding is “directly related” if it arises from the same trial court case as the case in this Court (including the proceedings directly on review in this case), or if it challenges the same criminal conviction or sentence as is challenged in this Court, whether on direct appeal or through state or federal collateral proceedings.

*In addition to the revisions set forth below, references to “18 U. S. C. § 3006A(d)(6)” in Rules 9.1, 29.5(b) and (c), and 33.2(a) are changed to “18 U. S. C. § 3006A(d)(7).” Subsection (d)(6) was redesignated as subsection (d)(7), and these Rules are now updated to conform to this change.

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**Rule 15. Briefs in Opposition; Reply Briefs;
Supplemental Briefs**

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2. A brief in opposition should be stated briefly and in plain terms and may not exceed the word or page limitations specified in Rule 33. In addition to presenting other arguments for denying the petition, the brief in opposition should address any perceived misstatement of fact or law in the petition that bears on what issues properly would be before the Court if certiorari were granted. Counsel are admonished that they have an obligation to the Court to point out in the brief in opposition, and not later, any perceived misstatement made in the petition. Any objection to consideration of a question presented based on what occurred in the proceedings below, if the objection does not go to jurisdiction, may be deemed waived unless called to the Court's attention in the brief in opposition. A brief in opposition should identify any directly related cases that were not identified in the petition under Rule 14.1(b)(iii), including for each such case the information called for by Rule 14.1(b)(iii).

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**Rule 25. Briefs on the Merits: Number of Copies and
Time to File**

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3. The petitioner or appellant shall file 40 copies of the reply brief, if any, within 30 days after the brief for the respondent or appellee is filed, but any reply brief must actually be received by the Clerk not later than 2 p.m. 10 days before the date of oral argument. Any respondent or appellee supporting the petitioner or appellant may file a reply brief.

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**Rule 29. Filing and Service of Documents; Special
Notifications; Corporate Listing**

1. Any document required or permitted to be presented to the Court or to a Justice shall be filed with the Clerk in paper form.

2. A document is timely filed if it is received by the Clerk in paper form within the time specified for filing; or if it is sent to the Clerk through the United States Postal Service by first-class mail (including express or priority mail), postage prepaid, and bears a postmark, other than a commercial postage meter label, showing that the document was mailed on or before the last day for filing; or if it is delivered on or before the last day for filing to a third-party commercial carrier for delivery to the Clerk within 3 calendar days. If submitted by an inmate confined in an institution, a document is timely filed if it is deposited in the institution's internal mail system on or before the last day for filing and is accompanied by a notarized statement or declaration in compliance with 28 U. S. C. § 1746 setting out the date of deposit and stating that first-class postage has been prepaid. If the postmark is missing or not legible, or if the third-party commercial carrier does not provide the date the document was received by the carrier, the Clerk will require the person who sent the document to submit a notarized statement or declaration in compliance with 28 U. S. C. § 1746 setting out the details of the filing and stating that the filing took place on a particular date within the permitted time.

Rule 33. Document Preparation: Booklet Format; 8½-by 11-Inch Paper Format

1. *Booklet Format:*

(g) Word limits and color covers for booklet-format documents are as follows:

Type of Document	Word Limits	Color of Cover
(v) Brief on the Merits for Petitioner or Appellant (Rule 24); Exceptions by Plaintiff to Report of Special Master (Rule 17)	13,000	light blue
(vi) Brief on the Merits for Respondent or Appellee (Rule 24.2); Brief on the Merits for Respondent or Appellee Supporting Petitioner or Appellant (Rule 12.6); Exceptions by Party		

Type of Document	Word Limits	Color of Cover
Other Than Plaintiff to Report of Special Master (Rule 17)	13,000	light red
(vii) Reply Brief on the Merits (Rule 24.4)	6,000	yellow
(viii) Reply to Plaintiff's Exceptions to Report of Special Master (Rule 17)	13,000	orange
(ix) Reply to Exceptions by Party Other Than Plaintiff to Report of Special Master (Rule 17)	13,000	yellow
(x) Brief for an <i>Amicus Curiae</i> at the Petition Stage or pertaining to a Motion for Leave to file a Bill of Complaint (Rule 37.2)	6,000	cream
(xi) Brief for an <i>Amicus Curiae</i> Identified in Rule 37.4 in Support of the Plaintiff, Petitioner, or Appellant, or in Support of Neither Party, on the Merits or in an Original Action at the Exceptions Stage (Rule 37.3)	9,000	light green
(xii) Brief for any Other <i>Amicus Curiae</i> in Support of the Plaintiff, Petitioner, or Appellant, or in Support of Neither Party, on the Merits or in an Original Action at the Exceptions Stage (Rule 37.3)	8,000	light green
(xiii) Brief for an <i>Amicus Curiae</i> Identified in Rule 37.4 in Support of the Defendant, Respondent, or Appellee, on the Merits or in an Original Action at the Exceptions Stage (Rule 37.3)	9,000	dark green
(xiv) Brief for any Other <i>Amicus Curiae</i> in Support of the Defendant, Respondent, or Appellee, on the Merits or in an Original Action at the Exceptions Stage (Rule 37.3)	8,000	dark green
(xv) Petition for Rehearing	3,000	tan

Rule 48. Effective Date of Rules

1. These Rules, adopted April 18, 2019, will be effective July 1, 2019.

2. The Rules govern all proceedings after their effective date except that the amendments to Rules 25.3 and 33.1(g) will apply only to cases in which certiorari was granted, or a direct appeal or original action was set for argument, after the effective date.

AMENDMENTS TO FEDERAL RULES OF APPELLATE PROCEDURE

The following amendments to the Federal Rules of Appellate Procedure were prescribed by the Supreme Court of the United States on April 25, 2019, pursuant to 28 U. S. C. § 2072, and were reported to Congress by THE CHIEF JUSTICE on the same date. For the letter of transmittal, see *post*, p. 1078. The Judicial Conference report referred to in that letter is not reproduced herein.

Note that under 28 U. S. C. § 2074, such amendments shall take effect no earlier than December 1 of the year in which they are transmitted to Congress unless otherwise provided by law.

For earlier publication of the Federal Rules of Appellate Procedure and amendments thereto, see 389 U. S. 1063, 398 U. S. 971, 401 U. S. 1029, 406 U. S. 1005, 441 U. S. 973, 475 U. S. 1153, 490 U. S. 1125, 500 U. S. 1007, 507 U. S. 1059, 511 U. S. 1155, 514 U. S. 1137, 517 U. S. 1255, 523 U. S. 1147, 535 U. S. 1123, 538 U. S. 1071, 544 U. S. 1151, 547 U. S. 1221, 550 U. S. 983, 556 U. S. 1291, 559 U. S. 1119, 563 U. S. 1045, 569 U. S. 1125, 572 U. S. 1161, 578 U. S. 1031, 581 U. S. 1029, and 584 U. S. 1043.

LETTER OF TRANSMITTAL

SUPREME COURT OF THE UNITED STATES
WASHINGTON, D. C.

APRIL 25, 2019

*To the Senate and House of Representatives of the United
States of America in Congress Assembled:*

I have the honor to submit to the Congress the amendments to the Federal Rules of Appellate Procedure that have been adopted by the Supreme Court of the United States pursuant to Section 2072 of Title 28, United States Code.

Accompanying these rules are the following materials that were submitted to the Court for its consideration pursuant to Section 331 of Title 28, United States Code: a transmittal letter to the Court dated October 24, 2018; a redline version of the rules with committee notes; an excerpt from the September 2018 report of the Committee on Rules of Practice and Procedure to the Judicial Conference of the United States; and an excerpt from the May 2018 report of the Advisory Committee on Appellate Rules.

Sincerely,

(Signed) JOHN G. ROBERTS, JR.
Chief Justice of the United States

SUPREME COURT OF THE UNITED STATES

APRIL 25, 2019

ORDERED:

1. The Federal Rules of Appellate Procedure are amended to include amendments to Rules 3, 5, 13, 21, 25, 26, 26.1, 28, 32, and 39.

[See *infra*, pp. 1081–1085.]

2. The foregoing amendments to the Federal Rules of Appellate Procedure shall take effect on December 1, 2019, and shall govern in all proceedings in appellate cases thereafter commenced and, insofar as just and practicable, all proceedings then pending.

3. THE CHIEF JUSTICE is authorized to transmit to the Congress the foregoing amendments to the Federal Rules of Appellate Procedure in accordance with the provisions of Section 2074 of Title 28, United States Code.

AMENDMENTS TO THE FEDERAL RULES
OF APPELLATE PROCEDURE

Rule 3. Appeal as of right—how taken.

(d) Serving the notice of appeal.

(1) The district clerk must serve notice of the filing of a notice of appeal by sending a copy to each party's counsel of record—excluding the appellant's—or, if a party is proceeding pro se, to the party's last known address. When a defendant in a criminal case appeals, the clerk must also serve a copy of the notice of appeal on the defendant. The clerk must promptly send a copy of the notice of appeal and of the docket entries—and any later docket entries—to the clerk of the court of appeals named in the notice. The district clerk must note, on each copy, the date when the notice of appeal was filed.

(2) If an inmate confined in an institution files a notice of appeal in the manner provided by Rule 4(c), the district clerk must also note the date when the clerk docketed the notice.

(3) The district clerk's failure to serve notice does not affect the validity of the appeal. The clerk must note on the docket the names of the parties to whom the clerk sends copies, with the date of sending. Service is sufficient despite the death of a party or the party's counsel.

Rule 5. Appeal by permission.

(a) Petition for permission to appeal.

(1) To request permission to appeal when an appeal is within the court of appeals' discretion, a party must file a petition with the circuit clerk and serve it on all other parties to the district-court action.

Rule 13. Appeals from the tax court.

(a) Appeal as of right.

(2) Notice of appeal; how filed.—The notice of appeal may be filed either at the Tax Court clerk's office in the District of Columbia or by sending it to the clerk. If sent by mail the notice is considered filed on the postmark date, subject to § 7502 of the Internal Revenue Code, as amended, and the applicable regulations.

Rule 21. Writs of mandamus and prohibition, and other extraordinary writs.

(a) Mandamus or prohibition to a court: petition, filing, service, and docketing.

(1) A party petitioning for a writ of mandamus or prohibition directed to a court must file the petition with the circuit clerk and serve it on all parties to the proceeding in the trial court. The party must also provide a copy to the trial-court judge. All parties to the proceeding in the trial court other than the petitioner are respondents for all purposes.

(c) Other extraordinary writs.—An application for an extraordinary writ other than one provided for in Rule 21(a) must be made by filing a petition with the circuit clerk and serving it on the respondents. Proceedings on the application must conform, so far as is practicable, to the procedures prescribed in Rule 21(a) and (b).

Rule 25. Filing and service.

(d) Proof of service.

(1) A paper presented for filing must contain either of the following if it was served other than through the court's electronic-filing system:

(A) an acknowledgment of service by the person served; or

(B) proof of service consisting of a statement by the person who made service certifying:

- (i) the date and manner of service;
- (ii) the names of the persons served; and
- (iii) their mail or electronic addresses, facsimile numbers, or the addresses of the places of delivery, as appropriate for the manner of service.

(2) When a brief or appendix is filed by mailing or dispatch in accordance with Rule 25(a)(2)(A)(ii), the proof of service must also state the date and manner by which the document was mailed or dispatched to the clerk.

(3) Proof of service may appear on or be affixed to the papers filed.

Rule 26. Computing and extending time.

(c) *Additional time after certain kinds of service.*—When a party may or must act within a specified time after being served, and the paper is not served electronically on the party or delivered to the party on the date stated in the proof of service, 3 days are added after the period would otherwise expire under Rule 26(a).

Rule 26.1. Disclosure statement.

(a) *Nongovernmental corporations.*—Any nongovernmental corporation that is a party to a proceeding in a court of appeals must file a statement that identifies any parent corporation and any publicly held corporation that owns 10% or more of its stock or states that there is no such corporation. The same requirement applies to a nongovernmental corporation that seeks to intervene.

(b) *Organizational victims in criminal cases.*—In a criminal case, unless the government shows good cause, it must file a statement that identifies any organizational victim of the alleged criminal activity. If the organizational victim is a corporation, the statement must also disclose the informa-

tion required by Rule 26.1(a) to the extent it can be obtained through due diligence.

(c) *Bankruptcy cases*.—In a bankruptcy case, the debtor, the trustee, or, if neither is a party, the appellant must file a statement that:

- (1) identifies each debtor not named in the caption; and
- (2) for each debtor that is a corporation, discloses the information required by Rule 26.1(a).

(d) *Time for filing; supplemental filing*.—The Rule 26.1 statement must:

- (1) be filed with the principal brief or upon filing a motion, response, petition, or answer in the court of appeals, whichever occurs first, unless a local rule requires earlier filing;
- (2) be included before the table of contents in the principal brief; and
- (3) be supplemented whenever the information required under Rule 26.1 changes.

(e) *Number of copies*.—If the Rule 26.1 statement is filed before the principal brief, or if a supplemental statement is filed, an original and 3 copies must be filed unless the court requires a different number by local rule or by order in a particular case.

Rule 28. Briefs.

(a) *Appellant's brief*.—The appellant's brief must contain, under appropriate headings and in the order indicated:

- (1) a disclosure statement if required by Rule 26.1;

Rule 32. Form of briefs, appendices, and other papers.

(f) *Items excluded from length*.—In computing any length limit, headings, footnotes, and quotations count toward the limit but the following items do not:

- cover page;
- disclosure statement;
- table of contents;
- table of citations;

- statement regarding oral argument;
- addendum containing statutes, rules, or regulations;
- certificate of counsel;
- signature block;
- proof of service; and
- any item specifically excluded by these rules or by local rule.

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Rule 39. Costs.

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(d) Bill of costs: objections; insertion in mandate.

(1) A party who wants costs taxed must—within 14 days after entry of judgment—file with the circuit clerk and serve an itemized and verified bill of costs.

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AMENDMENTS TO FEDERAL RULES OF BANKRUPTCY PROCEDURE

The following amendments to the Federal Rules of Bankruptcy Procedure were prescribed by the Supreme Court of the United States on April 25, 2019, pursuant to 28 U. S. C. § 2075, and were reported to Congress by THE CHIEF JUSTICE on the same date. For the letter of transmittal, see *post*, p. 1088. The Judicial Conference report referred to in that letter is not reproduced herein.

Note that under 28 U. S. C. § 2075, such amendments shall take effect no earlier than December 1 of the year in which they are transmitted to Congress unless otherwise provided by law.

For earlier publication of the Federal Rules of Bankruptcy Procedure and amendments thereto, see, *e. g.*, 461 U. S. 973, 471 U. S. 1147, 480 U. S. 1077, 490 U. S. 1119, 500 U. S. 1017, 507 U. S. 1075, 511 U. S. 1169, 514 U. S. 1145, 517 U. S. 1263, 520 U. S. 1285, 526 U. S. 1169, 529 U. S. 1147, 532 U. S. 1077, 535 U. S. 1139, 538 U. S. 1075, 541 U. S. 1097, 544 U. S. 1163, 547 U. S. 1227, 550 U. S. 989, 553 U. S. 1105, 556 U. S. 1307, 559 U. S. 1127, 563 U. S. 1051, 566 U. S. 1045, 569 U. S. 1141, 572 U. S. 1169, 575 U. S. 1049, 578 U. S. 1051, 581 U. S. 1035, and 584 U. S. 1057.

LETTER OF TRANSMITTAL

SUPREME COURT OF THE UNITED STATES
WASHINGTON, D. C.

APRIL 25, 2019

*To the Senate and House of Representatives of the United
States of America in Congress Assembled:*

I have the honor to submit to the Congress the amendments to the Federal Rules of Bankruptcy Procedure that have been adopted by the Supreme Court of the United States pursuant to Section 2075 of Title 28, United States Code.

Accompanying these rules are the following materials that were submitted to the Court for its consideration pursuant to Section 331 of Title 28, United States Code: a transmittal letter to the Court dated October 24, 2018; a redline version of the rules with committee notes; an excerpt from the September 2018 report of the Committee on Rules of Practice and Procedure to the Judicial Conference of the United States; and an excerpt from the May 2018 report of the Advisory Committee on Bankruptcy Rules.

Sincerely,

(Signed) JOHN G. ROBERTS, JR.
Chief Justice of the United States

SUPREME COURT OF THE UNITED STATES

APRIL 25, 2019

ORDERED:

1. The Federal Rules of Bankruptcy Procedure are amended to include amendments to Rules 4001, 6007, 9036, and 9037.

[See *infra*, pp. 1091–1093.]

2. The foregoing amendments to the Federal Rules of Bankruptcy Procedure shall take effect on December 1, 2019, and shall govern in all proceedings in bankruptcy cases thereafter commenced and, insofar as just and practicable, all proceedings then pending.

3. THE CHIEF JUSTICE is authorized to transmit to the Congress the foregoing amendments to the Federal Rules of Bankruptcy Procedure in accordance with the provisions of Section 2075 of Title 28, United States Code.

AMENDMENTS TO THE FEDERAL RULES
OF BANKRUPTCY PROCEDURE

Rule 4001. Relief from automatic stay; prohibiting or conditioning the use, sale, or lease of property; use of cash collateral; obtaining credit; agreements.

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(c) *Obtaining credit.*

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(4) *Inapplicability in a Chapter 13 Case.*—This subdivision (c) does not apply in a chapter 13 case.

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Rule 6007. Abandonment or disposition of property.

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(b) *Motion by party in interest.*—A party in interest may file and serve a motion requiring the trustee or debtor in possession to abandon property of the estate. Unless otherwise directed by the court, the party filing the motion shall serve the motion and any notice of the motion on the trustee or debtor in possession, the United States trustee, all creditors, indenture trustees, and committees elected pursuant to § 705 or appointed pursuant to § 1102 of the Code. A party in interest may file and serve an objection within 14 days of service, or within the time fixed by the court. If a timely objection is made, the court shall set a hearing on notice to the United States trustee and to other entities as the court may direct. If the court grants the motion, the order effects the trustee's or debtor in possession's abandonment without further notice, unless otherwise directed by the court.